RESOLUTION NO. 1619

A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF SNOQUALMIE, WASHINGTON, AMENDING THE PERSONNEL POLICIES

WHEREAS, on November 13, 2012, the Snoqualmie City Council adopted Resolution No. 1174, which adopted amended Personnel Policies of the City of Snoqualmie; and

WHEREAS, the City Council has determined that it is in the best interest of the City to adopt additional amendments to City of Snoqualmie Personnel Policies, in order to update the Policies as required by law and to incorporate certain Policy changes made on an emergency basis during the COVID-19 pandemic; and

WHEREAS, the City Council has determined that it is also in the best interest of the City to delegate to the Mayor and City Administrator authority to make certain, limited additional amendments to the Personnel Polices in order to enable the efficient and consistent administration of personnel matters; and

NOW, THEREFORE, be it hereby **RESOLVED** by the City Council of the City of Snoqualmie, Washington as follows:

Section 1. Personnel Policies Amended. Certain identified Policies of the City of Snoqualmie Personnel Policies are hereby amended as set forth below:

SECTIONS 1.3 EQUAL EMPLOYMENT OPPORTUNITY.

1.3.1 The City is an equal employment opportunity employer. The City employs, retains, promotes, terminates and otherwise treats all employees and job applicants on the basis of merit, qualifications, and competence. This policy shall be applied without regard to the employee's or applicant's ~~Discrimination based on an individual's~~ sex, race (inclusive of traits historically associated or perceived to be associated with race, including hair texture and hairstyle), creed, color, religion, national origin, citizenship or immigration status, age, marital status, sexual orientation, gender identity, pregnancy, or disability, veteran's status, or any other base prohibited by applicable federal, state, or local laws ~~is prohibited~~.

1.3.2 The City reasonably accommodates employees with a sensory, physical or mental impairment. It is the responsibility of the applicant or employee to request accommodation for any disability. If an applicant or employee has a disability that limits his/her ability to perform the essential elements of the job, please inform the department director and/or Human Resources of the disability and a request for reasonable accommodation. In order to provide reasonable accommodation, the City may seek to communicate with the applicant / employee and his/her medical providers to gain a better understanding of the limitations and the means by which an accommodation would allow the employee to perform the essential functions of the position. Such communications with medical providers will only occur after the employee or applicant has given written consent.

1.3.3 The City complies with its duty to provide reasonable accommodation of any applicant's or employee's sincerely held religious beliefs, unless the City determines granting an accommodation would create an undue hardship, cannot be granted due to contractual commitments that cannot be or will not be waived, or is contrary to law or the City's commitment to diversity. For example, if an employee seeks a certain work schedule, or to dress or attire himself/herself in a way that varies from any dress code adopted by the City, the employee will inform the department director of the religious practice and a request for reasonable accommodation.

2.33 VACCINATION. As a qualification of employment, all City employees and City volunteers, including volunteer firefighters and health care providers, are required to be fully vaccinated against COVID-19 with a vaccine authorized by the U.S. Centers for Disease Control. To be considered fully vaccinated, prospective employees must provide proof of the following prior to the date of hire:

- Completion of two doses of an authorized mRNA vaccine (Pfizer, Moderna or equivalent); or
- Completion of one dose of a Johnson & Johnson / Janssen or equivalent authorized single-dose vaccine.

Proof of vaccination includes providing to Human Resources a CDC Covid-19 Vaccination Record Card, WA State Certificate of Covid-19 Vaccination, WA State Immunization Information System

printout, or a verified electronic medical record printout from a medical provider, as well as signing and returning to Human Resources a Proof of Vaccination Form.

Prospective employees with a sincerely held religious belief or a medical condition that prevents them from getting vaccinated may request an exemption and reasonable accommodation from the above COVID-19 vaccine requirement. See Policy 1.3.3 above.

SECTION 6.1 **HOLIDAYS.** Legal holidays to be observed by the City are:

A. New Year's Day

B. Martin Luther King's Birthday

C. President's Day

D. Memorial Day

E. Independence Day

F. Labor Day

G. Veteran's Day

H. Juneteenth

I. Thanksgiving Day

J. Day after Thanksgiving

K. Christmas Day

L. Two (2) personal/floating holidays designated by the employee (employee must have worked in a regular position four months prior to using this holiday) Union employees will accrue 1 personal/floating holiday in January, and 1 personal/floating holiday in July of each year.

6.1.1 Unless specifically otherwise designated, any holiday that falls on a Saturday, shall be observed on the preceding Friday. Holidays that falls on a Sunday shall be observed on the following Monday.

6.1.2 If any of the above holidays are designated state holidays and federal l holidays but are observed on different dates, only the state holidays shall be observed.

6.1.3 If an employee is required by the employee's Department Head to work on a recognized holiday, the employee shall receive compensation at the rate of time and one-half for time worked, in addition to the employee's regular straight-time hourly rate.

6.1.4 Holidays, which occur during vacation or sick leave, shall not be charged against such leave.

6.1.5 An employee shall receive two personal/floating holidays each calendar year, as noted above, provided:

A. The employee has been continuously employed by the City for more than four months.

B. The employee has prior supervisory approval; and

C. The number of employees selecting a particular day off does not prevent the City from providing effective public service.

D. Personal holidays must be taken during the calendar year, or entitlement to them will lapse, except when an employee has requested a personal holiday and the request has been denied. An employee shall not be paid in lieu of taking the holiday under any circumstances.

6.1.6 If an employee's religious beliefs require the observance of a holiday not included in the basic holiday schedule, the employee may, with the employee's Department Head's approval, take the day off using a personal holiday, vacation, compensatory time, or leave without pay.

6.1.7 An employee who receives a COVID-19 vaccine booster shot after the date of hire, and provide proof of vaccination booster to Human Resources, will be eligible to receive a single, one-time additional floating holiday. An employee who receives a booster shot before their date of hire is not eligible to receive the one-time additional floating holiday.

6.3 SICK LEAVE

6.3.1 For all regular, full-time employees, paid sick leave shall accrue at the rate of one day of leave for each month of continuous full-time

service. For all regular, part-time employees who work at least 20 hours per week, paid sick leave shall accrue at the rate of one day of leave for each month of continuous part-time service, multiplied by the fraction x/40, where "x" equals the number of hours worked per week. A maximum of 90 days (720 hours) of earned but unused sick leave may be carried over from one calendar year to the next. Employees are eligible to use sick leave for the following reasons and/or during the following circumstances:

A. Personal illness or physical disability.

B. Quarantine or isolation of an employee by a physician for exposure to or infection with a contagious disease, when an employee is directed by their supervisor to return home or not to report to work, where reporting to or remaining at work poses a substantial risk of ~~would~~ jeopardizing~~ze~~ the health of others, as determined by the physician or supervisor.

C. Bona fide medical or dental appointments for the employee, family member or dependent child residing with the employee, provided that the employee makes a reasonable effort to schedule such appointments at times which are least disruptive to the work day.

D. Absence due to use of a prescription drug which impair job performance or safety.

E. Actual periods of temporary disability related to pregnancy or childbirth (see Section 6.4, Disability/Maternity Leave).

F. To attend the birth of and/or to care for an employee's newborn child (see Section 6.5, Family Leave).

G. To care for a member of the employee's immediate family who has a health condition requiring supervision or treatment or who has been exposed to an infectious agent, biological toxin, or hazardous material and has been requested or recommended to self-quarantine, and where the employee's reporting to work could pose a substantial risk to the health of others, as determined by the employee's physician or supervisor.

H. When the school, place of care, or caregiver of an employee's child or immediate family member residing with the employee is closed/unavailable due for a health-related reason. For purposes of this policy, "health-related reason" means a serious public health concern that could result in bodily injury or exposure to an infectious agent, biological toxin, or hazardous material. Health-related reason does not include closures for inclement weather.

I. When the employee or a member of the employee's immediate family has been deemed in the judgment of a public health official to be at "high risk" of contracting an infectious disease and said risk may be exacerbated by to the employee's potential workplace

exposure to an infectious agent, biological toxin, or hazardous material; due to the nature of the employee's work, the employee is not able to telecommute or utilize other alternate work arrangements; and the employee has requested and received permission from their supervisor and the Human Resources Director to not report to work in order to reduce the risk of contracting an infectious disease. The supervisor and/or Human Resources Director may request documentation from the employee's physician of potential risk.

Section 2. Implementation. The Mayor, and City Administrator if directed by the Mayor, is hereby authorized and directed to update the City of Snoqualmie Personnel Policies, to carry out the provisions of this resolution. The Mayor, and City Administrator if directed by the Mayor, is also authorized to make such future additional amendments to the Personnel Policies as may be necessary to: (a) make the Policies consistent with federal or state law, rules or regulations and (b) provide for a more efficient, equitable, uniform and consistent administration and management of personnel matters; provided, that amendments to Personnel Policies that increase employee wages, compensation (including compensated absences) or benefits, create new employee positions, or prescribe the duties, qualifications or compensation of appointed officers specified by Ch. 2.64 of the Snoqualmie Municipal Code shall require approval by the Mayor and City Council by resolution.

Section 3. Superseding Provisions; Severability. In cases where these Personnel Policies conflict with Federal or State law, rules or regulations, the Snoqualmie Personnel Policies shall be deemed superseded. In all other cases the amended Personnel Policies shall apply. If any section, sentence, clause or phrase of this resolution or section of the City of Snoqualmie Personnel Policies adopted hereby should be held to be invalid or unconstitutional by a court of competent jurisdiction, such invalidity or unconstitutionality shall not affect the validity of any other section, sentence, clause or phrase of this resolution or the adopted section.

Section 4. Effective Date. Any benefits created, or any changes to policy, resulting from this resolution, shall be effective on June 14, 2022.

PASSED by the City Council of the City of Snoqualmie this 13 day of June, 2022.

Katherine Ross

Katherine Ross, Mayor

Attest:

Deborah Estrada, City Clerk

Approved as to form:

Bob C. Sterbank, City Attorney